ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	99th Commission Meeting
DATE:	13 October 2022
TIME:	09:15 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSION	DECISIONS
1.	**Regular update on HR- HRS** *The HRO presented the discussions and decisions of the 72nd HRC as follows:* • *The next phase of recruitment already started. The mandatory training will be conducted in January 2023.* • *Approval of the RCSC on appointment of offtg. Regional Directors.* • *Placement of new recruits at Regional Offices.*	**While noting the decisions of the HRC, gave following decisions:** • **Issue office order on their appointment as acting Regional Directors but the terminology as decided by HRC to be Regional Director.** • **Talk with RCSC on the possibility to retain the two employee who are appearing BCSE in the ACC.** • **Placement of new recruits at Regional Offices to be done after the mandatory training.**
2.	**Presentation on case no 08/2022-Bumthang Regional Office** *Based on the decision of the Commission to follow up and validate information on four points, the team presented the information. Based on the added information, the team felt it need no go for prosecution.*	**Write letter to individuals as well as copy to Thrizn on the need to recovery the amount along with 24% penal interest. To also include the recovery to be made on or before three months.**
3.	**Apprise and seek direction on finalization report on case 12/2022-(Part II)- DoI & LD**	**Upon reviewing the case, the Commission decided not to charge the members of National Credit Guarantee Committee under National Credit Guarantee Scheme in view of the fact that it was the very first meeting of the Committee and it is plausible that the Members were not fully conversant with the requirements. However, this benefit of doubt cannot be extended to the Chairman as he had signed the agreement/MoU with the Banks prior to the Committee meeting and can be reasonably expected to know the requirement for the**

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		loan proposal to have been routed through the Banks rather than be directly decided by the Committee. **Nonetheless, in the report to include all the observations and it is up to OAG to change or not.**
4.	**Apprise on experience sharing on civic and voter education- Offtg. RD, Bumthang** *The ACC in collaboration with ECB worked on developing a module on Anti-Corruption in their civic and voter education modular framework. Thus, Offtg. RD, Bumthang shared their experience on the same.*	**The Commission applauded the Division on the collaborative effort and directed to let Commission know anything that needs to be communicated formally.**
5.	**Apprise on Draft Framework of Training Manual on Anti-Corruption for the CSOs- PD** *A contract with Bhutan Transparency Initiative (BTI) was signed on 11 August 2022 to develop the Framework of Training Manual on Anti-Corruption for the CSO which is funded by UNDP. Towards this, the Division presented the skeletal framework (attached as Annex 1).*	***Specific direction was given as follows:*** • **Switch the sequence of module 4 and 5;** • **Under tools, include gift rule and social accountability;** • **Chapter V, which is termed Enforcement, change the title. Under the same chapter, remove electronic surveillance operations however to include ART and complaints management;** • **Refer reports of TI CPI and recommendations of studies like ACA Strengthening Repot, NCBR, etc on how to engage the CSO.** **In general, directed to refer to training manual of other agencies like RAA to make the manual more comprehensive and practical. As for printing of manuals, directed to rethink given the austerity measures.** **Moreso, Division to think of the bigger picture and what we are envisioning to do with the CSO with the manual.**
6.	**Seek direction on presentation of Annual Report 2021-2022- PPD** *PPD apprised that National Assembly (NA) have requested to present Annual Report (AR) 2021- 2022 on Monday i.e. 17 October 2022 @ 10:00 AM as well as request from National Council to present*	**Directed to consult with ADMD on their schedule of meeting with the HoA and accordingly Commission will attend the presentation based on the availability of time. In case of the presentation overlapping with ADMD sessions, Commission A Karma Rinzin to lead the team (Director, DoI; Director, DoPS; Offtg.**

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	on Wednesday @ 2:00 PM have been received.	**Director DoPE; Head, LD & PPD). On top of presentation of AR, based on the request of NA to present PII, directed the Offtg. Chief, EAD to make a short presentation.** **As for the backlog of complaints, while in the AR it was not qualified that any complaints which qualified for investigation within two years are not considered as backlog, however directed to segregate the data and present the data separately.**
7.	**Apprise on the cost estimate for visit to CPIB- PPD** *As directed by Commission, PPD presented an estimate of travel cost to visit CPIB.*	**As recommended by PPD, decided to choose Option 2 (Travel by direct flight to Singapore and while on return, halt at Bangkok) since it is the most cost effectives route. As for the team, decided as follows:** **1. Chairperson;** **2. Director of DoI; and** **3. Head, DARe.** **Mainly because since its renewing the network between the ACC and CPIB, Chairperson should lead the delegation. Secondly, as the request for Technical Assistance was made in areas of investigation and intelligence, the Heads of concerned department/division to accompany Chairperson.**
8.	Others:	

Commissioner **Commissioner** **Chairperson**

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SKELETAL FRAMEWORK OF CSOs TRAINING MANUAL ON ANTI-CORRUPTION

CONTENTS

1. Acknowledgement

2. Background information

3. Scope and Purpose of the Manual

This training manual will provide substantive guidance on understanding the various types and forms of corruption and the various means of mitigating it. The manual will elaborate extensively on corruption offences, anti-corruption and governance principles, policies and measures, national anti-corruption strategies, ethics, integrity and professionalism, integrity promotion and corruption prevention tools, social accountability and investigative journalism**,** strengthening systems and processes for reducing corruption. The manual will also prescribe a step-wise methodology.

4. Introduction

5. Broad Learning Objectives

- To enhance the knowledge of the CSOs on good governance for a more effective, efficient, inclusive and beneficial service delivery.
- To build capacity of the CSOs towards fostering a mutually cooperative relationship to support the fight against corruption.
- To strengthen collaboration and cooperation between the ACC and the CSOs in the country to form a strong social fence against corruption. The Transparency International in their Assessment of the Bhutan Anti-Corruption Commission 2021 has mentioned that rather than focusing on regulating and strengthening the internal integrity of the CSOs, they must be taken as partner to support the fight against corruption.

Part 1. Governance Principles, policies and Corruption

Module 1. Defining governance policies, principles and legislations

- International and regional legal instruments
- National legal instruments
- Dealing with the past: amnesty and other alternatives
- Standards to prevent and control the laundering of corruption proceeds
- Legal provisions to facilitate the gathering and use of evidence in corruption cases: easing the burden of proof.
- Whistleblower protection
- Service Delivery Surveys

Module 2: Defining corruption

- Definitions

Module 3. Defining corruption offences

Part 2. National Anti-Corruption Strategies

Module 4. Anti-corruption agenda in the National Five-Year Plan

Module 5. Understanding the national anti-corruption strategies

- Three-pronged Strategy
  - Education, prevention and investigation
- NIACS
  - YEP, integrity clubs, e-learning
  - Research
  - Organizational integrity plan
  - CSO Engagement Strategy
  - Business Integrity Initiative of Bhutan

Module 6. Law enforcement and regulatory agencies

- Specialized anti-corruption agencies
- Auditors and audit institutions
- Ombudsmen
- Strengthening judicial institutions

- Civil service reform to strengthen service delivery
  - Codes and standards of conduct
- National anti-corruption commission, committees and similar bodies
  - National integrity and action-planning meetings
  - Anti-corruption action plans
- Strengthening local governments
- Legislatures and their efforts against corruption

Part 3. Prevention and Combating of Corruption

The purpose of the Toolkit is threefold:

- To help Governments, organizations and the public understand the insidious nature of corruption and the damaging effects it can have on the welfare of entire nations and their people;
- To provide an inventory of measures to assess the nature and extent of corruption in order to deter, prevent and combat it more successfully; and
- To combine and integrate the various "Tools" into successful national anticorruption strategies.

Chapter I. ETHICS, INTEGRITY AND PROFESSIONALISM

Module 7. Introduction to ethics, integrity and professionalism

- Understanding ethics, integrity and professionalism
- Fundamental principles and values of ethics
- Anti-Corruption values
- Factors that influence integrity
- Framework for professionalism
- Ethical dilemma
- Ethical decision-making checklists
- Causes of corruption

Chapter II. INTEGRITY PROMOTION AND CORRUPTION PREVENTION TOOLS

Module 8. Description of the tools and implementation

- Code of Conduct
- Integrity vetting Report
- Declaration and Management of Conflicts of Interest

- Declaration and Management of Assets and Liabilities
- Declaration and Management of Gifts
- Social Accountability Tool
- Integrity Diagnostic Tool
- Corruption Risk Management
- Integrity Pact
- Organizational Integrity Plan
- CSO Accountability Standard
- Research (assess the nature and extent of corruption and institutional capabilities against corruption)
- CSO related case studies

Chapter III. SITUATIONAL PREVENTION

- Authority to monitor public sector contracts
- Disclosure of assets and liabilities by public officials
- Curbing corruption in the procurement process
- Integrity pacts
- Reducing procedural complexity
- Reducing and structuring discretion
- Results- or fact-based management
- The use of positive incentives to improve employee culture and motivation

Chapter IV. SOCIAL PREVENTION AND PUBLIC EMPOWERMENT

- Access to information
- Mobilizing civil society through public education and awareness-raising
- Media training and investigative journalism
- Public complaints mechanisms
- Citizens' charters

Chapter V. COMBATING CORRUPTION

Module 9. Complaint management and investigation process

- Complaints management
  - Evaluation
  - Information enrichment
  - Sensitization
  - Action taken report

- Investigation of corrupt acts
  - Financial investigations and the monitoring of assets
  - Integrity testing
- Prosecution
- Adjudication
- Restitution of illegal funds, assets and properties

Chapter VI. MONITORING AND EVALUATION

Module 10. National and international measures and assessments

- National Integrity Assessment
- National Barometer surveys
- TI CPI reports
- National Integrity reports
- Mirror statistics as an investigative and preventive tool etc.

Part 4.: Role of CSOs in combating Corruption in the Country

Module 11. Strengthened Internal Governance systems
Module 12. Watchdog roles of CSOs
Module 13. Building social fence against corruption
Module 14. CSOs role in improving the TICPI score of Bhutan

CONCLUSION

REFERENCES